

22STCV35170 22STCV35170

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 22STCV35170 Hearing Date: August 12, 2026 Dept: O

TENTATIVE RULING

August 12, 2026

22STCV35170 (Villalba v. City of
Los Angeles, et. al.)

RELEVANT BACKGROUND

On November 3, 2022,
Teresa Villalba (Teresa) filed her complaint. Teresea died during the pendency
of this action, on January 21, 2023.

On January 15, 2025,
Teresa's son, Augustin Villalba (Augustin) filed a first amended complaint
(FAC) for survival by decedent, Teresa, pursuant to Code of Civil Procedure
section 377.34 and wrongful death pursuant to section 377.32.

INSTANT MOTIONS

On February 17, 2026, defendant Southern
California Gas Company (SoCal Gas) filed the instant motions to compel initial
discovery responses from Teresa and Augustin. SoCal Gas also requests monetary
sanctions in the amount of \$665 per motion.

Augustin filed an opposition.

On February 24, 2026, SoCal Gas

filed a notice of withdrawal of the instant motions with respect to Teresa but not Augustin.

No reply has been filed.

DISCUSSION

“If a party to whom interrogatories are directed fails to serve a timely response to, the following shall apply: (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories...(b) The party propounding the interrogatories demand may move for an order compelling response to the interrogatories.” (Code Civ. Proc., § 2030.290.)

“If a party to whom a demand for inspection, copying, testing or sampling is directed fails to serve a timely response to it, the following shall apply: (a) The party to whom the demand for inspection, copying, testing or sampling is directed is directed waives any objection to the demand . . . (b) The party making the demand may move for an order compelling response to the demand.” (Id., § 2031.300.)

Here, SoCal Gas moves to compel Augustin's initial responses to form interrogatories, set one, and demand for production of documents, set one. SoCal Gas also requests monetary sanctions in the amount of \$665 per motion. SoCal Gas asserts that Augustin has failed, without justification, to provide any responses to the identified discovery that was served on September 26, 2025. (Williams Decl., ¶ 2-3, Ex. A.)

In opposition, Plaintiff's counsel asserts that the form interrogatories propounded on Augustin are being answered without objections. (See Opp. at p. 2.) But there is no indication that this has been done, and the opposition does not mention the requests for production.

No reply has been filed.

SoCal Gas's motions to compel Augustin's initial responses to form interrogatories, set one, and requests for production, set one, are GRANTED. The discovery requests were

served on September 26, 2025, and there is no indication that any responses have been provided to date.

Additionally, Augustin's request for monetary sanctions is GRANTED in full. The Court finds that monetary sanctions are appropriate, as there is no justification for the failure to respond. The Court finds that the amount requested, \$1,330 (\$665 per motion) is reasonable. (Williams Decl., ¶ 6.)

Moving party to give notice.